F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 Date: 19.12.2019

दिनांक २९.११.२०१९ को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 29.11.2019

स्थायीव्यापारसुविधाकमिटीकीमासिकबैठकदिनांक २९.११.२०१९ को सुबह ११.३० बजे हुई। जिसकी अध्यक्षता श्री एस. अनंत कृष्णन, आयुक्त (निर्यात), एयर कार्गो कॉम्प्लेक्स, मुंबई झोन - ३ द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 29.11.2019 at 11.30 A.M. was presided over by Shri S. Anantha Krishnan, Commissioner of Customs (Export), ACC, Sahar.

निम्नलिखित अधिकारियों वहितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नामवपद/Name & designation	संगठन/Organization
श्री म. के. सारंगी/Shri M. K. Sarangi, अपरआयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री. शलभ कटियार/ Shri Shalabh Katiyar संयुक्तआयुक्त (जनरल)/Jt. Commissioner (General)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री प्रभाकर कुमार /Shri Prabhakar Kumar संयुक्तआयुक्त (निर्यात)/Jt. Commissioner (Export)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री एम. एच. हिंगोरानी/ Shri M. H. Hingorani सहायकआयुक्त (आयात)/Asstt.Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
सुश्रीप्रियाजाधव/ Ms PriyaJadhav उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्रीएम एम खोलवादवाला/Shri M.M.Kholwadwala सहायकआयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री विनोद नौटियाल/ Shri Vinod Nautiyal सहायकआयुक्त (आयात)/Asstt.Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायकआयुक्त (आयात)/Asstt.Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Bala Ayer, Mohsin G Charania, Vineet Agrawal and Shri Thomas Alvares	ACAAI
Shri KaushalThakkar, SanjeevHarale, Ketan Desai, Shri PareshSangani, , Shri Parosh Sanani, Shri DushyantMulani	BCBA (formerly known as BCHAA)
Ms. VaishaliKulkarni	COSIA
Shri Mohamad Nasir, Ashok Satvase, Manoj Singh, Mayilvanan T	MIAL
Mrs. ManitaChuri	Asst. Drug Controller

At the outset, Commissioner of Customs (Export) welcomed the members of Trade, Customs Brokers, Airlines Representatives, Custodian Representatives, and other stake holders present in the meeting. Following agenda points were taken up:

AGENDA POINTS FROM PREVIOUS MEETING :

1) Due to limitation of EDI system and error in system, whenever a BE is submitted with INCOTERM C&I, EDI system automatically calculates 20 % freight instead of actual freight amount mentioned at the time submission of BE. This results in amendment of

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BE by re-calling the BE by the group DC and also payment of Rs.1000/- for amendment charges. Trade has suggested that EDI system needs to be rectified to ensure that actual freight amount should be accepted as declared and hence Directorate of System, New Delhi needs to be represented accordingly. Till such time EDI system is rectified, amendment of Rs. 1000/- need not be recovered from Trade till such time.

Dy. Commissioner (EDI) informed that the 2-3 case study has been referred to DG (System) so that issue can be resolved.

(Issue Closed)

Points Raised by BCBA

1. **Breakdown of message exchange in EDI system**

Trade has requested to resolve the issue of breakdown of message exchange in EDI system which is causing delay in processing of Export Consignments.

Chairman has informed that this issue may be occurred due to the bandwidth problem and same will be taken up with ADG (Infrastructure).

(Customs Import-EDI)

2. **Error in ICEGATE in declaring the nature of transaction –**

Trade representatives informed that in case of import consignments on FREE OF CHARGE basis, the bills of entry are mandatorily showing the PAYMENT METHOD as a "TRANSACTION" instead of "FREE OF COST". While submitting import job for generating the bills of entry number with the correct details to ICEGATE declaring the Payment Terms as " FC " Free of Cost, and correctly declaring the NATURE OF TRANSACTION as " Free of Cost under the Code " F", the ICEGATE is showing for such import bills of entry , PAYMENT METHOD as a " TRANSACTION " instead of " Free of Cost.

Chairman has informed that this is system related issue and will be taken up with DG(System).

(Customs Import-EDI)

3. **Refund of Double Duty payment due to EDI system error.**

Trade representatives informed that there are several instances of double duty payment happening due to EDI system error. They have requested to issue Public Notice / Instruction for stipulating the time frame for sanction of double duty refund.

Chairman has informed that this issue will be examined and action will be taken accordingly.

(Customs Import-PRO)

Points raised by ACCAI –

1. **Status of B/E not updated even after reply from the Importer**

Trade has informed that when query is replied on-line, the BE status under "Current Queue" still shows as BE with importer whereas it should acknowledge receipt of the reply to the query. They have requested to update the status immediately.

Chairman has informed that this is system related issue and will be taken up with DG(System).

(Customs Import-PRO)

2. **Unable to upload document in E-Sanchit while replying to query.**

Trade Representatives have raised an issue that while replying to query on-line, they are not able to upload the supporting documents e. g catalog in E-Sanchit. They

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have requested to initiate a facility to upload the documents while reply to the query online.

Chairman has informed that presently there is limited capacity for uploading documents in E-Sanchit and in view of upcoming Faceless Assessment , capacity in E-Sanchit for uploading documents may be increased by DG System and the issue may get resolved.

(Issue Closed)

3. **Status of goods registration directly on the Custodian Screen.**

The trade has requested that status of goods registration should reflect both Customs and Custodian's screen so that Custodian also are aware that Goods Registration is done and forwarding process can be initiated. Presently trade has to take BE manually to the customs goods registration counter. Customs Officer checks in system and on confirmation that Goods Registration is done, then he will stamp the BE. This stamp is accepted by the custodian and then custodian will process forwarding.

Chairman has informed that this is also system related issue and will be taken up with DG (System) alongwith other issues.

(Customs Import-EDI)

4. **Online transfer of MEIS Scrips.**

Representatives of the trade has requested that the MEIS scrips issued by DGFT, it should be directly transferred to ICEGATE which will make it more authentic. Further, they have requested to stop manual registration of MEIS scrips.

Chairman has informed that this issue will be examined and action will be taken accordingly.

(Customs-Import)

5. **Problems faced during Exports of Pharma products –**

Trade representatives informed that Export examining staff asks for the list of Port codes/ product list of Pharma Products. Presently there are 170 port codes for Pharma products. Trade has requested that the port code has to be generated in system so that there is no need to show product list at the time of examination.

Chairman suggested to give representation on the issue by the concern Pharma Industry/Pharma council, so that matter can be taken up with DG(System) for including particular port Codes.

(Customs-Export)

6. **On account of E-sanchit in Export/Import, there should be waiver of DMS charges–**

Chairman informed that all the three Commissioners will discuss it and will take collective decision.

(Customs General/ Import/Export)

7. **Pendency of IGST Refund –**

Though IGST Scroll has been generated regularly, still there is huge pendency of IGST refund.

Chairman informed that pendency is mostly due to IGST Refunds pertaining to error in the Shipping Bills or in the GSTR returns. If it is rectified then pendency will come down drastically.

(Issue Closed)

8. **Requirement of Departure Certificate during Unaccompanied Baggage Exports –**

Customs requires Departure Certificate during Baggage Exports, however Airlines don't issue Departure Certificate & as per them Boarding Pass is the valid document.

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However, Boarding Pass goes with Passenger. Airlines don't issue Departure Certificate.

Commissioner(Export) suggested to make representation to Pr. Commissioner(Airport) as matter comes under his purview.

(Issue Closed)

बैठककासमापनअध्यक्षमहोदयोंकोधन्यवादज्ञापनकेसाथहुआ।
The meeting ended with thanks to the Chair.

यहस्थायीव्यापारसुविधाकमिटीकेअध्यक्षमहोदयआयुक्तमहोदय(आयात)औरआयुक्तमहोदय(निर्यात),अंचल-IIIकेअनुमोदनसेनिर्गतकियाजाताहै।

This issues with the approval of Commissioner of Customs (Export), Mumbai Customs Zone-III.

(एम.के. सारंगी / M.K. SARANGI)
अपरआयुक्तसीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाईमालसंकुल,सहार,मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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